

25STCV37838 25STCV37838

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Case Number: 25STCV37838 Hearing Date: July 15, 2026 Dept: 515

NATURE OF PROCEEDINGS: Hearing on Defendant's Motion
to Strike Second Cause of Action and Demand for Attorney Fees from First
Amended Complaint

Defendant's Motion to Strike is granted in part and denied
in part.

BACKGROUND

Plaintiff Roxane Estrada (Plaintiff) filed this action
against Azul Concreto, Inc. (Defendant), alleging that Defendant agreed to
build an accessory dwelling unit (ADU) and convert the garage at Plaintiff's
Montebello property, then performed the work defectively and left it
unfinished.

The causes of action in the First Amended Complaint (FAC)
are: (1) Breach of Oral Contract; and (2) Violation of California Consumer
Protection Statutes.

Defendant filed a Motion to Strike the second cause of
action and items 3 and 6 of the prayer for relief. Plaintiff filed an
Opposition.

LEGAL STANDARD

A party may serve and file a notice of motion to strike the
whole of a pleading or any part of it. (Code Civ. Proc., § 435, subd. (b)(1).)
The Court may strike out any irrelevant, false, or improper matter inserted in

any pleading, and may strike out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court. (Code Civ. Proc., § 436, subds. (a), (b).) Irrelevant matter includes an allegation not essential to the statement of a claim, an allegation neither pertinent to nor supported by an otherwise sufficient claim, and a demand for judgment requesting relief not supported by the allegations of the complaint. (Code Civ. Proc., § 431.10, subds. (b), (c).) The grounds for a motion to strike must appear on the face of the challenged pleading or from any matter of which the Court is required to take judicial notice. (Code Civ. Proc., § 437, subd. (a).)

In ruling on a motion to strike, judges read the allegations of the challenged pleading as a whole, read all parts in their context, and assume their truth. Courts do not read the allegations in isolation. (Clauson v. Superior Court (1998) 67 Cal.App.4th 1253, 1255.) Where the defect raised by a motion to strike is reasonably capable of cure, leave to amend is routinely and liberally granted. (CLD Construction, Inc. v. City of San Ramon (2004) 120 Cal.App.4th 1141, 1146.)

ANALYSIS

Defendant moves to strike the entire second cause of action, item 3 of the prayer for relief, which seeks statutory remedies under the Consumers Legal Remedies Act (CLRA), the unfair competition law (UCL), and the home improvement contract statutes, and item 6 of the prayer for relief, which seeks attorney fees where authorized.

I. Failure to Serve FAC

As an initial matter, the Court addresses Defendant's observation that Plaintiff filed but did not serve the operative FAC. The absence of service does not preclude the Court from resolving the motion. Service of an amended complaint functions to give the party notice of the operative pleading and to commence the time to respond under Code of Civil Procedure section 471.5, subdivision (a); it is not a condition of the Court's jurisdiction, which, once acquired, "continues throughout subsequent proceedings in the action." (Code Civ. Proc., § 410.50, subd. (b).) By filing the present motion to strike, directed at the allegations of the FAC, Defendant made a general appearance. (Code Civ. Proc., § 1014.) "A general appearance operates as a consent to jurisdiction of the person, dispensing with the requirement of service of process, and curing defects in service." (Fireman's

Fund Ins. Co. v. Sparks Construction, Inc. (2004) 114 Cal.App.4th 1135, 1145.) That principle rests on the purpose of service, for process is required to notify a defendant of the action, but “once the defendant appears in the action, this purpose has been served.” (Id. at p. 1145.) Because Defendant received the FAC, appeared, and challenged its allegations on the merits, the sole consequence the lack of service could have carried, that Defendant’s time to respond under section 471.5 had not yet begun to run, is immaterial to the motion now before the Court, and the Court proceeds to the merits.

II. The Second Cause of Action

Defendant challenges the second cause of action on two grounds: (1) the count joins three statutory schemes and so is not drawn in conformity with Code of Civil Procedure section 425.10 and California Rules of Court, rule 2.112; and (2) the count alleges legal conclusions rather than facts.

A motion to strike does not test whether a pleading states facts sufficient to constitute a cause of action. Under Code of Civil Procedure section 436, it is “improper for a court to strike a whole cause of action of a pleading,” and a pleading challenge aimed at a whole cause of action belongs in a demurrer. (Quiroz v. Seventh Ave. Center (2006) 140 Cal.App.4th 1256, 1281.) A motion to strike may reach a substantive defect that is clear from the face of a complaint but touches only a portion of a cause of action. (PH II, Inc. v. Superior Court (1995) 33 Cal.App.4th 1680, 1682-1683.) Even then, the remedy is to be used cautiously and sparingly, and it is not a procedural “line item veto” for the civil defendant. (Id. at p. 1683.)

Here, Defendant identifies no word, phrase, or allegation in the second cause of action as irrelevant, false, or improper. Defendant argues instead that the count consists of unsupported legal conclusions, broad generalizations, and speculative inferences, and that it contains no allegation of actual fact.

Nor does the second cause of action fail to conform to California Rules of Court, rule 2.112, which requires that each separately stated cause of action state its number, its nature, the party asserting it if more than one party is represented on the pleading, and the party against whom it is

directed. (Cal. Rules of Court, rule 2.112.) The second cause of action is numbered and titled "Violation of California Consumer Protection Statutes". It identifies the CLRA, the UCL, and the home improvement contract statutes by name and code section directly beneath that title. (FAC, p. 7:7-11.) The rule does not require that each statutory theory within a count be pleaded as a separate cause of action. Nor does this grouping violate Code of Civil Procedure section 425.10, which requires only a statement of the facts constituting the cause of action in ordinary and concise language. (Code Civ. Proc., § 425.10, subd. (a)(1).) Whether Plaintiff has stated those facts is once again a question for demurrer.

Defendant's authorities do not support its reading.

Defendant attributes to *Jaffe v. Carroll*

(1973) 35 Cal.App.3d 53 (*Jaffe*), the proposition that "the nature of the allegations, not the heading, determines whether a group of paragraphs constitutes a cause of action or count, along with the character of the remedy sought." (Mot. at p. 6:3-6.) However, *Jaffe*, which concerned a demurrer, actually states "[e]ven though the plaintiffs labeled their causes of action, that does not mean they are bound by those labels. 'It is an elementary principle of modern pleading that the nature and character of a pleading is to be determined from its allegations, regardless of what it may be called, and that the subject matter of an action and issues involved are determined from the facts alleged rather than from the title of the pleadings....'" (Id. at p. 57.) Contrary to Defendant, *Jaffe* rejects strict form requirements for pleadings.

Accordingly, the Court concludes that the second cause of action is not a proper subject of a motion to strike, and denies the motion as to that cause of action. For the same reason, the Court likewise denies the motion to strike the prayer for relief's request for statutory remedies under those statutes.

III. Attorney Fees

Defendant argues that no allegation supports the demand for attorney fees. Attorney fees are recoverable only as provided by statute or by the agreement of the parties. (Code Civ. Proc., § 1021.) Plaintiff, who is self-represented, states that she does not presently seek attorney fees and withdraws the demand. (Opp. at p. 6:11-13.) Plaintiff no longer claims that relief, and the demand is therefore unsupported by the allegations.

Accordingly, the motion is granted as to the request for Attorney Fees.

CONCLUSION

Defendant's Motion to Strike is granted as to the request for attorney fees and denied as to the second cause of action and related relief. Defendant has twenty days to file an Answer.